

Amendment No. 1 to SB2409

Briggs
Signature of Sponsor

AMEND Senate Bill No. 2409

House Bill No. 1474*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 15, is amended by adding the following as a new chapter:

15-3-101. Short title.

This chapter is known and may be cited as the "No Pride Flag or Month Act."

15-3-102. Definitions.

(a) As used in this chapter:

(1) "LGBTQ flag or emblem" includes, but is not limited to:

(A) A flag or emblem intended to display support for lesbianism, homosexuality, bisexuality, transgenderism, gender non-conforming behavior, or individuals who engage in such conduct;

(B) The rainbow flag, which depicts the colors of the rainbow as horizontal stripes, and any variation of this design;

(C) The equality flag, which depicts a yellow equals sign against a blue background, and any variation of this design;

(D) The transgender flag, which consists of two (2) light blue stripes, two (2) pink stripes, and a white stripe in the center, and any variation of this design; and

(E) Any object, image, or representation that uses the word "pride" in a manner intended to convey support for or approval of

lesbianism, homosexuality, bisexuality, transgenderism, gender non-conforming behavior, or individuals who engage in such conduct; and

(2) "LGBTQ pride period" means the designation of a month, week, day, or another period of time for commemorating, celebrating, or conveying support for or approval of lesbianism, homosexuality, bisexuality, transgenderism, gender non-conforming behavior, or individuals who engage in such conduct.

15-3-103. LGBTQ pride flag and period not recognized.

(a) Notwithstanding another law to the contrary, except as provided in subsection (c), an LGBTQ flag or emblem must not be displayed or maintained on property owned by this state or a political subdivision of this state, or on a building or the grounds of any such building, by any employee, volunteer, or agent of this state or a political subdivision of this state in accordance with this chapter.

(b) Notwithstanding another law to the contrary, except as provided in subsection (c), this state or a political subdivision of this state shall not take any action that recognizes or acknowledges the month of June or another period of time as an LGBTQ pride period, and an employee, volunteer, or agent of this state or a political subdivision of this state shall not take any such action while working for, acting as an agent of, or volunteering for this state or a political subdivision of this state.

(c) This section must not be construed to restrict or regulate:

(1) The off-the-job behavior of an employee, volunteer, or agent of this state or a political subdivision of this state; or

(2) Speech or conduct protected by the First Amendment of the United States Constitution, as made applicable to the states through the supreme court of the United States' interpretations of the Fourteenth Amendment of the United States Constitution.

(d) Notwithstanding another law to the contrary, adverse action or threats of any sort must not be taken or made by this state or a political subdivision of this state, or by

an officer, employee, or agent of this state or a political subdivision of this state, against a person in response to that person's violation or violations of this section, except as provided in § 1-3-121. This section does not preclude or limit the enforcement of another law, rule, or regulation governing conduct that is independently prohibited by such other law, rule, or regulation, and that would remain prohibited by such other law, rule, or regulation in the absence of this section.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to actions or omissions occurring on or after that date.